



IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

204

CRM-M No.31631 of 2026
DATE OF DECISION : 4th JUNE, 2026

Harwinder Singh @ Harvinder Singh @ Monu & others

.... Petitioners

Versus

State of Punjab

.... Respondent

CORAM : HON'BLE MR. JUSTICE ROHIT KAPOOR

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Present : Mr. Tushar Madaan, Advocate &
Ms. Amandeep Kaur, Advocate for the petitioners.

Mr. Adeshwar Singh Pannu, AAG, Punjab.

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ROHIT KAPOOR, J. (Oral)

1. The petitioners Harwinder Singh @ Harvinder Singh @ Monu, Lovepreet Singh and Jaskirat Singh @ Jass, are seeking regular bail under Section 483 of the Bharatiya Nagarik Suraksha Sanhita (439 Cr.P.C.) in FIR No.28 dated 23.03.2026 under Sections 310(4), 310(5), 111 BNS, 2023 [Corresponding Sections 399 & 402 IPC] and 25 of Arms Act registered at Police Station Garhdiwal, District Hoshiarpur.

2. The case of the prosecution is that while the police party was allegedly conducting routine checking on 23.03.2026, a secret informer informed the police that the petitioners along with other co-accused were allegedly present near Mohalla Ranjitgarh, close to Dhussi Bandh towards the forest area, while armed with illegal weapons and were allegedly planning to commit dacoity in Garhdiwal City. It is further



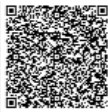
alleged that ASI Satpal Singh, who was in civil dress, was deputed to verify the said information and after about 15 minutes, he confirmed the presence of the accused persons and their alleged intention to commit dacoity.

3. Learned counsel for the petitioners submits that the petitioners are innocent and have been falsely implicated in the present case. He further submits that the petitioners are in custody for the last more than 02 months. He has also submitted that co-accused Taranjit Singh @ Taran and Gursharan Singh @ Gora, have already been granted regular bail by a Co-ordinate Bench of this Court in CRM-M-30139-2026 and CRM-M-30182-2026, respectively. He, thus, prays for grant of bail to the petitioners, on the ground of parity.

4. Notice of motion.

5. Mr. Adeshwar Singh Pannu, AAG, Punjab accepts notice on behalf of the State and vehemently opposes the prayer for grant of regular bail to the petitioners on the ground of gravity of allegations. Learned State counsel has filed the custody certificates in Court, which are taken on record. He further submits that as per the custody certificates, the petitioners are in custody for the last more than 02 months. It has been pointed out that the petitioners have other criminal cases pending against them, in which they are on bail.

6. I have heard the learned counsel for the parties and perused the record.



7. After hearing the rival contentions of the learned counsel for the parties and keeping in view the facts and circumstances of the case that the petitioners are in custody for more than 02 months days; though each petitioner is an accused in a single and separate case, however, they have been granted bail in their respective cases; the co-accused have already been granted bail by this court; the conclusion of trial is likely to take some time and continuous detention of the petitioners would not serve the ends of justice, this Court deems it appropriate to grant the concession of regular bail to the petitioners during the pendency of the trial.

8. Therefore, without expressing any opinion on the merits of the case, the instant petition is allowed. The petitioners are ordered to be released on regular bail on their furnishing requisite bail bonds, surety bonds to the satisfaction of the trial Court/Duty Magistrate/Chief Judicial Magistrate concerned.

9. Pending miscellaneous application(s), if any, shall also stand disposed of.

4TH JUNE, 2026
'raj'

(ROHIT KAPOOR)
JUDGE

<i>Whether speaking/reasoned:</i>	<i>Yes</i>	<i>No</i>
<i>Whether Reportable:</i>	<i>Yes</i>	<i>No</i>